

## Chapter 800 Definitions

### 800.50 Defined Terms

- (5) Adult Entertainment  
means **premises** used for entertainment including activities, facilities, performances, exhibitions, viewings or encounters designed to appeal to erotic or sexual appetites or inclinations which a principal feature or characteristic is the nudity or partial nudity of any person. A **body rub service** is not an **adult entertainment**.
- (10) Agricultural Use  
means the use of **premises** for growing and harvesting plants or raising animals, fowl, fish or insects.
- (15) Amenity Space  
means indoor or outdoor space on a **lot** that is communal and available for use by the occupants of a **building** on the **lot** for recreational or social activities.
- (20) Amusement Arcade  
means **premises** where more than 2 **amusement devices** are provided for patron use on the **premises**.
- (25) Amusement Device  
means a machine or electronic device used for games of skill or chance other than:  
(A) billiards,  
(B) bowling, and  
(C) any gaming or lottery device regulated under Province of Ontario legislation.
- (30) Ancillary  
means naturally and normally incidental, subordinate in purpose or floor area, and exclusively devoted to a permitted use, **building** or **structure**.
- (45) Angular Plane  
means an imaginary flat surface projecting over a **lot**, at an inclined angle measured up from the horizontal. [ By-law: 1124-2018 ]
- (50) Animal Shelter  
means **premises** used for the keeping, adoption or disposal of stray, abandoned or wild animals.
- (55) Apartment Building  
means a **building** that has five or more **dwelling units**, with at least one **dwelling unit** entirely or partially above another, and each **dwelling unit** has a separate entrance directly from outside or through a common inside area. A **building** that was originally constructed as a **detached house**, **semi-detached house** or **townhouse** and has one or more **secondary suites** is not an **apartment building**.
- (60) Art Gallery  
means **premises** used for the exhibition, collection or preservation of works of art for public viewing.
- (65) Artist Studio  
means **premises** used for creating art or craft.
- (70) Automated Banking Machine  
means a device at which customers can complete self-serve financial transactions.
- (75) Average Grade  
means the average elevation of the existing or finished ground surface, whichever is lower, around all sides of a **building** or **structure**, measured where the **building** or **structure** meets the ground surface, excluding:  
(A) the part of the ground along any one **main wall** where there is a permitted **vehicle** entrance into the **building** or **structure**; and  
(B) parts of the ground along each **main wall**, up to a cumulative maximum of 25% of the horizontal length of the **main wall**, where there are pedestrian entrances or window wells.
- (80) Basement

means any part of a **building** where the elevation of the midpoint between the lowest part of a floor and the bottom of the joists directly above it is lower than the elevation of:

- (A) **established grade** in the Residential Zone category and the Residential Apartment Zone category; and
- (B) in all other zone categories, the average elevation of the ground along the **front lot line**. [ By-law: 1277-2022(OLT) ]

(85) Bed-Sitting Room

means a room used as separate living accommodation that:

- (A) has a private entrance from a hallway inside a **building**; and
- (B) may have sanitary facilities but not food preparation facilities.

(88) Bicycle Maintenance Facilities

means an area for bicycle repairs and maintenance which may include work space, a repair stand and an air pump for inflating bicycle tires. [ By-law: 839-2022 ]

(90) Bicycle Parking Space

means an area used for parking or storing a bicycle.

(92) Body Rub Service

means **premises** used for services involving the kneading, manipulating, rubbing, massaging, touching or stimulating by any means of a person's body for the purposes of appealing to erotic or sexual appetites or inclinations. An **adult entertainment**, **massage therapy**, or **wellness centre** is not a **body rub service**.

(95) Building

means a wholly or partially enclosed **structure** with a roof supported by walls, columns, piers or other structural systems. A **vehicle** is not a **building**.

(100) Building Depth

means the horizontal distance between the **front yard setback** required on a **lot** and the portion of the **building's** rear **main wall** furthest from the required **front yard setback**, measured along a line that is perpendicular to the **front yard setback** line.

(105) Building Length

means the horizontal distance between the portion of the front **main wall** of a **building** on a **lot** closest to the **front lot line**, and the portion of the rear **main wall** of the **building** closest to the **rear lot line**, measured along the **lot centreline**. If the **main walls** are not intersected by the **lot centreline**, the measurement is from the point on the **lot centreline** where a line drawn perpendicular to the **lot centreline** connects with the **main wall**.

(110) Building Setback

means a horizontal distance measured at a right angle from any **lot line** to the nearest part of the **main wall** of a **building** or **structure**.

(115) Cabaret

means **premises** used to provide entertainment such as a dinner theatre or comedy club, where patrons are seated at tables and where food or beverages may be offered for sale. An **adult entertainment** use, an **eating establishment**, a **nightclub**, or an **entertainment place of assembly** is not a **cabaret**.

(120) Cemetery

means **premises** used for the interment of human remains, which may include one or more of the following:

- (A) scattering grounds;
- (B) columbarium; or
- (C) mausoleum.

(125) Club

means **premises**:

- (A) operated by members of a **non-profit organization** that maintains formal membership and generally limits attendance at meetings to members; and

(B) used for meetings and gatherings for social, cultural, recreational, charitable or community service purposes; and

(C) a **community centre** is not a **club**.

(130) Cogeneration Energy

means thermal energy and electrical energy simultaneously produced from the same process.

(135) Columbarium

means a **building** or **structure** used for the interment of cremated human remains.

(140) Community Centre

means **premises** operated by or on behalf of a government or **non-profit organization** providing community activities, such as arts, crafts, recreational, social, charitable and educational activities. A **club** is not a **community centre**.

(145) Contractor's Establishment

means **premises** used as the base of operations of a tradesperson or contractor.

(150) Corner Lot

means a **lot** situated,

(A) at the intersection of two or more **streets** having an interior angle of intersection of 135 degrees or less, or

(B) where one **street** bends to create an interior angle of 135 degrees or less.

(155) Courtyard

means any area on a **lot** that is bounded on two or more sides by one or more **buildings** on the same **lot**.

(160) Crematorium

means a **building** or **structure** used to cremate human remains.

(165) Crisis Care Shelter

means **premises**, other than a **municipal shelter**, in which short-term emergency accommodation and associated support services are provided and supervised.

(170) Custom Workshop

means **premises** used for producing or making custom-made goods in limited quantities, using techniques that do not involve mass-production.

(175) Day Nursery

means **premises** providing temporary care or guidance for more than five children, for a continuous period not exceeding twenty-four hours and is regulated as a home child care agency under the Child Care and Early Years Act, 2014, S.O. 2014, c. 11, Sched. 1. A recreational program operated by or for the City is not a **day nursery**. [ By-law: 1429-2017 ]

(180) Detached House

means a **building** that has one **dwelling unit** occupying the entire **building**.

(190) District Heating and Cooling Plant

means **premises** used to generate, for mass distribution, thermal energy to heat or cool.

(195) Drive Aisle

means a **vehicle** passageway located within an area used for the parking or storage of 3 or more **vehicles**.

(200) Drive Through Facility

means **premises** used to provide or dispense products or services, through an attendant, or a window or an automated machine, to persons remaining in **vehicles** that are in a designated **stacking aisle**. A **vehicle washing establishment** or a **vehicle fuel station** is not a **drive through facility**.

(205) Drive-in Eating Establishment

means **premises** where food or beverages are prepared and offered for sale to patrons for consumption while remaining in their **vehicles**.

(210) Driveway

means a passageway providing **vehicle** access between a **street** or **lane** and an area used for the parking, loading or storage of a **vehicle**.

(215) Duplex

means a **building** that has two **dwelling units**, with one **dwelling unit** entirely or partially above the other. A **detached house** that has a **secondary suite**, is not a **duplex**.

(219) Dwelling Room

means a room used as living accommodation that is available for rent and that is not self-contained. A **dwelling room** may contain private sanitary facilities or cooking facilities, but not both. [ By-law: 156-2023 ]

(220) Dwelling Unit

means living accommodation for a person or persons living together as a single housekeeping unit, in which both food preparation and sanitary facilities are provided for the exclusive use of the occupants of the unit.

(225) Eating Establishment

means **premises** where food or beverages are prepared and offered for sale to patrons for immediate consumption on the **premises** while they are seated, and which may include an incidental take-out service.

(230) Education Use

means the use of **premises** for education or training, other than:

- (A) a **post-secondary school**;
- (B) a school regulated under the Education Act, R.S.O. 1990, c.E.2, as amended; or
- (C) a **religious education use**.

(233) Energized Outlet

means a connected point in an electrical wiring installation at which current is taken to supply utilization equipment for electric **vehicle** charging. [ By-law: 89-2022 ]

(235) Entertainment Place of Assembly

means **premises** used to provide entertainment, such as a theatre, cinema, opera, concert hall or ballet. An **adult entertainment** use, an **eating establishment**, a **cabaret**, or a **nightclub** is not an **entertainment place of assembly**.

(240) Established Grade

means the average elevation of the ground measured at the two points where the projection of the required minimum **front yard setback** line is 0.01 metres past each **side lot line**.

(245) Financial Institution

means **premises** used to provide financial services to the public, other than exclusively through an **automated banking machine**.

(250) Firearm

means a device such as a handgun, rifle, shotgun or any other similar device, used or capable of being used to fire a projectile from a cartridge or shot shell.

(255) First Floor

means the floor of any part of a **building**, other than an area used for parking, that is:

- (A) directly above a **basement**; and
- (B) if there is no **basement**, closest to the elevation of:
  - (i) **established grade** in the Residential Zone category and the Residential Apartment Zone category; and
  - (ii) in all other zone categories, the average elevation of the ground along the **front lot line**. [ By-law: 1277-2022(OLT) ]

(260) Former General Zoning By-law

means:

- (A) By-law No. 438-86 (being the Zoning By-law of the former City of Toronto), as amended, By-law 291-68 (being the Forest Hill Zoning By-law), as amended, and

By-law 278-73 (being the Swansea Zoning By-law), as amended, and their predecessor zoning by-laws as applicable;

- (B) By-law No. 7625 (being the Zoning By-law of the former City of North York), as amended, and predecessor zoning by-laws as applicable;
- (C) By-law 1-83 (being the Zoning By-law of the former City of York), as amended, and predecessor zoning by-laws as applicable;
- (D) Zoning Code of The City of Etobicoke, Canada, V131 (being the Zoning Code of the former City of Etobicoke), as amended, and predecessor zoning by-laws as applicable;
- (E) Borough Of East York Zoning By-Law No.1916 (Town Of Leaside), as amended, and By-Law No. 6752 (Township Of East York), as amended, (being the Zoning By-laws of the former Borough of East York), and their predecessor zoning by-laws as applicable;
- (F) The Corporation of the City of Scarborough By-Law Number: 10076 (Agincourt); 12797 (Agincourt North); 8786 (Birchcliff); 9350 (Bendale); 9174 (Birchmount Park); 9396 (Cliffcrest); 12077 (Centennial); 8978 (Clairlea); 9364 (Cliffside); 9508 (Dorset Park); 10048 (Eglinton); 9676 (Guildwood); 10827 (Highland Creek); 9089 (Ionview); 9276 (Kennedy Park); 12466 (L'amoreaux); 14402 (Malvern); 12181 (Malvern West); 842-2004 (Midland-St.Clair); 17677 (Milliken); Morningside Heights; 11883 (Morningside); 9366 (Maryvale); 9812 (Oakridge); 15907 (Rouge); 10010 (Scarborough Village); 16762 (Steeles); 10717 (Sullivan); 12360 (Tam O'Shanter); 25278 (Upper Rouge - Hillside); 950-2005 (Warden Woods); 9511 (Wexford); 10327 (West Hill); 9510 (Woburn); Employment Districts Zoning By-Law Number 24982; Industrial District By-Law Number 12790 Centennial Industrial District); The Corporation Of The Township Of Pickering By-Law Number 1978; By-Law Number 3036 (Highway No. 2 Area in Rouge Community) (being the Zoning By-laws of the former City of Scarborough), all as amended, and their predecessor zoning by-laws as applicable.

(265) Fourplex

means a **building** that has four **dwelling units**, with at least one **dwelling unit** entirely or partially above another. A **detached house**, **semi-detached house** or **townhouse** that has one or more **secondary suites** is not a **fourplex**.

(275) Front Lot Line

means the **lot line** or contiguous lines dividing a **lot** from a **street**.

(280) Front Wall

means any portion of the **main wall** of a **building** or **structure** that faces a **front lot line**.

(285) Front Yard

means the area on a **lot**,

- (A) between the **front lot line** and all front **main walls** of the **building**, and
- (B) extending parallel to the **front lot line** across the full width of the **lot** from the point where the front **main wall** of the **building** meets the **building's** side **main walls** closest to the respective **side lot lines**.

(290) Front Yard Setback

means a horizontal distance on a **lot** measured at a right angle from the **front lot line** to the nearest **main wall** of a **building** or **structure**.

(295) Funeral Home

means **premises** used for the care and preparation of human remains, and may include related coordination and provision of rites and ceremonies so that persons may attend and pay their respects.

(300) Funeral Visitation Centre

means **premises** established for the purpose of temporarily placing human remains and may include related coordination and provision of rites and ceremonies, so that persons may attend and pay their respects. A **funeral visitation centre** is not a **funeral home** and does not include the care and preparation of human remains.

(303) Garden Suite

means a self-contained living accommodation for a person or persons living together as a separate single housekeeping unit, in which both food preparation and sanitary facilities are provided for the exclusive use of

the occupant(s) of the suite and is in an **ancillary building** not abutting a **lane**. A **laneway suite** is not a **garden suite**. [ By-law: 101-2022 ]

(305) Gaming Establishment

means **premises** used for the purpose of wagering on games of chance under Province of Ontario legislation, excluding bingo or other lottery events licensed by the City of Toronto for charitable purposes.

(310) Geo-Energy

means energy derived from the temperature of the earth that is used to produce thermal energy or converted to produce electrical energy.

(315) Green Roof

means an extension to a **building's** roof that allows vegetation to grow in a growing medium and which is designed, constructed and maintained in compliance with the Toronto Green Roof Construction Standard set out in Chapter 492 of the City of Toronto Municipal Code.

(320) Gross Floor Area

means the sum of the total area of each floor level of a **building**, above and below the ground, measured from the exterior of the **main wall** of each floor level.

(325) Group Home

means **premises** used to provide supervised living accommodation, licensed or funded under Province of Ontario or Government of Canada legislation, for up to ten persons, exclusive of staff, living together in a single housekeeping unit because they require a supervised group living arrangement. [ By-law: 0550-2014 ]

(330) Heritage District

means an area identified as being of historical, architectural, archaeological or cultural heritage value or interest, and designated as a Heritage Conservation District pursuant to the Ontario Heritage Act R.S.O. 1990, c.O.18, as amended.

(335) Heritage Site

means **premises** included in the City of Toronto Inventory of Heritage Properties, listed as being of historical, architectural, archaeological or cultural heritage value or interest, or designated as such pursuant to the Ontario Heritage Act R.S.O. 1990, c.O.18, as amended.

(345) Home Occupation

means a business use within a **dwelling unit**, where the **dwelling unit** is the principal residence of the business operator.

(350) Hospice Care Home

means **premises** used to provide palliative care.

(355) Hospital

means **premises** used as a private or public **hospital** under the Province of Ontario Public Hospitals Act, R.S.O. 1990, c. P.40, as amended or Private Hospitals Act, R.S.O. 1990, c. P.24, as amended, for the care or treatment of:

- (A) persons afflicted with or suffering from sickness, disease or injury;
- (B) convalescent or chronically ill persons;
- (C) persons suffering from substance addictions; or
- (D) persons suffering from emotional, psychological or mental disorders.

(360) Hotel

means **premises** used to cater to the needs of the travelling public by providing sleeping accommodation in rooms or suites, and it may include an **eating establishment** that is **ancillary** to the **hotel**.

(365) Industrial Gas Manufacturing

means **premises** used for primary processing of propane, hydrogen, ammonia, chlorine, or other toxic gas.

(370) Industrial Sales and Service Use

means the use of **premises** for the lease, rental, sale, servicing or repair of equipment or goods for businesses only. **Industrial sales and service use** does not include the lease, rental, sale, servicing, customizing or repair of **vehicles**, other than those used for construction or agriculture.

(375) Interior Floor Area

means the floor area of any part of a **building**, measured to:

- (A) the interior side of a **main wall**;
- (B) the centreline of an interior wall; or
- (C) a line delineating the part being measured.

(380) Kennel

means **premises** used for boarding, training or breeding of dogs, cats or other domestic animals.

(390) Laboratory

means **premises** used for scientific or technical research, analysis, experimentation or development.

(395) Landscaping

means an area used for trees, plants, decorative stonework, retaining walls, walkways, or other landscape or architectural elements. **Driveways** and areas for loading, parking or storing of **vehicles** are not **landscaping**.

(400) Lane

means a public right-of-way that is not for general traffic circulation.

(402) Laneway Suite

means a self-contained living accommodation for a person or persons living together as a separate single housekeeping unit, in which both food preparation and sanitary facilities are provided for the exclusive use of the occupants of the suite and is in an **ancillary building** abutting a **lane**. A **garden suite** is not a **laneway suite**. [ By-law: 101-2022 ]

(405) Lawful and Lawfully

means:

- (A) authorized or permitted before a zoning or restrictive by-law applied;
- (B) in compliance with the provisions of the applicable **former general zoning by-law**; or
- (C) authorized pursuant to a Section 45 Planning Act minor variance.

(410) Lawfully Existing

Means:

- (A) existing **lawfully** on May 9, 2013;
- (B) for which a building permit was **lawfully** issued before May 9, 2013; or
- (C) for which a building permit was **lawfully** issued within five years of May 9, 2013 pursuant to Article 2.1.3, Transition Clauses. [ By-law: 801-2020 ]

(413) Level 2 Charging

means a Level 2 electric **vehicle** charging level as defined by SAE International's J1772 standard, as amended. [ By-law: 89-2022 ]

(415) Loading Space

means an area used for the loading or unloading of goods or commodities from a **vehicle**.

(420) Lot

means a single parcel or tract of land that may be conveyed in compliance with the provisions of the Planning Act.

(425) Lot Area

means the horizontal area within all the **lot lines** of a **lot**.

(430) Lot Centreline

means a straight line joining the midpoint of the **front lot line** and the midpoint of the **rear lot line**.

(435) Lot Coverage

means the portion of the **lot** that is covered by any part of any **building** or **structure** on or above the surface of the **lot**.

(440) Lot Depth

means the horizontal distance between the **front lot line** and **rear lot line** of a **lot**, measured along the **lot centreline**. [ By-law: 1124-2018 ]

- (445) Lot Frontage  
means the horizontal distance between the **side lot lines** of a **lot**, or the projection of the **side lot lines**, measured along a straight line drawn perpendicular to the **lot centreline** at the required minimum **front yard setback**.
- (450) Lot Line  
means any boundary of a **lot**.
- (455) Main Wall  
means any exterior wall of a **building** or **structure**, including all structural members essential to the support of a roof over a fully or partly enclosed area.
- (460) Manufacturing Use  
means the use of **premises** for fabricating, processing, assembling, packaging, producing or making goods or commodities, and it includes repair of such goods or commodities.
- (463) Marihuana Production Facility  
means **premises** used for growing, producing, testing, destroying, storing, or distribution of marihuana or cannabis, or products containing marihuana or cannabis, authorized by a licence issued under Government of Canada legislation. [ By-law: 1124-2018 ]
- (465) Market Garden  
means **premises** used for growing and harvesting vegetables, fruits, flowers, shrubs, trees or other horticultural products for the purpose of sale.
- (467) Massage Therapy  
means **premises** providing **massage therapy** by persons who are medical or health professionals licensed or registered under Province of Ontario legislation. A **body rub service** or **wellness centre** is not a **massage therapy**.
- (470) Mausoleum  
means a **building** or **structure**, other than a **columbarium**, used for the interment of human remains.
- (473) Medical Marihuana Production Facility  
means **premises** used for growing, producing, testing, destroying, storing, or distribution of medical marihuana or cannabis authorized by a license issued by the federal Minister of Health, pursuant to section 12 of the *Marihuana for Medical Purposes Regulations*, SOR/2013-119, under the *Controlled Drugs and Substances Act*, S.C. 1996, c. 19, as amended.  
[ By-law: 0403-2014 ]
- (475) Mixed Use Building  
means a **building** with a **dwelling unit** and a non-residential use. A **residential building** is not a **mixed use building**.
- (478) Multi-tenant House  
means a **building** with four or more **dwelling rooms** that may have shared common facilities for sanitary and cooking. A **group home**, **residential care home**, **nursing home**, **retirement home**, **seniors community house**, **religious residence**, **student residence**, **tourist home**, or **hotel** is not a **multi-tenant house**. [ By-law: 156-2023 ]
- (480) Municipal Shelter  
means **premises** in which short-term emergency accommodation and associated support services are provided and supervised, and is operated by or for the City of Toronto, or an agency of the City of Toronto.
- (485) Museum  
means **premises** used for the exhibition, collection or preservation of objects of cultural, historical or scientific interest for public viewing.
- (490) Nightclub  
means **premises** used to provide dance facilities for patrons and where food or beverages may be offered for sale, such as a dance hall or disco. A **cabaret**, an **entertainment place of assembly**, an **eating establishment**, or an **adult entertainment** use is not a **nightclub**.
- (495) Non-Profit Organization  
means:



- (A) a corporation without share capital to which the provisions of Part III of the Corporations Act, R.S.O. 1990, c.C.38, as amended, apply; or
- (B) a **non-profit organization**, a charitable organization or a registered charity, as those terms are defined in the Income Tax Act, R.S.C. 1985, Chapter 1 (5th Supp.), as amended.

(500) Non-Residential Building

means a **building** that does not have a **dwelling unit**.

(505) Nursing Home

means **premises** used to provide living accommodation and regular nursing care for persons of any age and which has personal and medical care facilities, common lounges and dining areas.

(510) Obnoxious Use

means the use of **premises** in a manner that is offensive through the creation or transmission of noise, vibration, illumination, emissions, fumes, odour, dust or radiation, or any combination of these, beyond any **lot lines** of the **premises**.

(515) Off-site Parking

means one or more **parking spaces** on one **lot** providing required **parking spaces** for a use on another **lot**.

(520) Open Storage

means the use of **premises** for keeping or storing goods, commodities, containers or equipment other than in a wholly enclosed **building**. **Public parking**, or the parking or storing of vehicles in a **vehicle depot** or in a **parking space**, is not **open storage**. [ By-law: 89-2022 ]

(525) Outdoor Patio

means an outdoor patron area that is **ancillary** to a non-residential use.

(530) Park

means **premises** used for conservation, horticulture, or municipally operated public recreation.

(535) Parking Garage

means a **building** or portion thereof, with one or more **parking spaces**.

(540) Parking Space

means an area used for the parking or storing of a **vehicle**.

(545) Passenger Terminal

means **premises** used for the boarding or discharge of people being transported.

(550) Performing Arts Studio

means **premises** used for the rehearsal of performing arts, such as music, dance or theatre.

(555) Personal Service Shop

means **premises** used to provide personal grooming services or for the cleaning or care of apparel.

(560) Pesticide or Fertilizer Manufacturing

means **premises** used for manufacturing agricultural chemicals, including nitrogenous and phosphoric fertilizer materials, mixed fertilizers, and agricultural and household pest control chemicals.

(565) Pet Services

means **premises** used to provide for the grooming of domestic animals. A **veterinary hospital** or a **kenel** are not **pet services**.

(570) Petrochemical Manufacturing

means **premises** used for primary processing of refined petroleum and natural gas into petrochemicals for secondary processing.

(575) Place of Assembly

means **premises** used for social, cultural, educational or trade events, such as a banquet hall, convention or trade centre, or a hall used for bingo or other lottery events licensed by the City of Toronto for charitable purposes.

(580) Place of Worship

means **premises** used by a **religious organization** for religious worship, services, ceremonies or rites, which may also be used for the advancement of its charitable purposes.

(585) Post-Secondary School

means **premises** used for educational purposes by a degree granting college or university under Province of Ontario legislation.

(590) Power Generation Use

means the use of **premises** for the production of energy for mass distribution.

(595) Premises

means the whole or part of lands, **buildings** or **structures**, or any combination of these.

(605) Private Home Daycare

means **premises** used for the temporary care of children and such care is provided in a **dwelling unit**, other than the **dwelling unit** of a parent or guardian of any such child, for a continuous period not exceeding twenty-four hours and may have a maximum of:

(A) six children, if the **Private Home Daycare** (home child care) is under an agreement to a home child care agency as regulated under the Child Care and Early Years Act, 2014, S.O. 2014, c. 11, Sched. 1; and

(B) five children, if the **Private Home Daycare** (home child care) is not under an agreement to a home child care agency as regulated under the Child Care and Early Years Act, 2014, S.O. 2014, c. 11, Sched. 1 [ By-law: 1429-2017 ]

(610) Private School

means **premises** used for elementary or secondary education regulated under the Education Act, R.S.O. 1990, c. E.2, as amended, but not publicly funded under the Act.

(615) Production Studio

means **premises** used for producing live broadcasts, motion pictures, or audio or video recordings or transmissions. The mass reproduction of film or recordings is not a **production studio**.

(620) Public Parking

means **premises** having an area for the parking of one or more **vehicles** as a principal use and the parking of a **vehicle** is available for public use with or without a fee.  
[ By-law: 1675-2013 ]

(625) Public School

means **premises** used for elementary or secondary education regulated and funded under the Education Act, R.S.O. 1990, c. E.2, as amended.

(630) Public Utility

means **premises** or facilities used for telecommunications, the transmission and distribution of electricity, the distribution of gas, steam or other forms of energy, or the collection, distribution, storage or treatment of water or sewage.

(635) Public Works Yard

means **premises** operated by, or on behalf of, the City of Toronto, Province of Ontario or Government of Canada, for the storage, manufacture, maintenance or repair of **buildings**, infrastructure, materials or equipment. A **public works yard** may include uses such as a machine shop, paint shop, sign shop, woodworking shop, repair garage or storage facility used in connection with public works such as **transportation uses** and **parks**. [ By-law: 1124-2018 ]

(640) Quarry

means **premises** regulated under Province of Ontario legislation used for any excavation or extraction of consolidated or unconsolidated aggregates, such as clay, marl, sand, gravel, limestone, slate or granite.

(645) Rear Lot Line

means, in the case of:

(A) a square or rectangular **lot**, the **lot line** opposite the **front lot line**;

(B) a three-sided **lot**, the point where two **lot lines** meet furthest from the **front lot line**; or

(C) any other type of **lot**, the furthest **lot line** opposite the **front lot line**, including any contiguous line adjoining it at an angle of less than 45 degrees.

(650) Rear Yard

means the area on a **lot**,

- (A) between the **rear lot line** and all rear **main walls** of the **building**, and
- (B) extending parallel to the **rear lot line** across the full width of the **lot** from the point where the rear **main wall** of the **building** meets the **building's** side **main walls** closest to the respective **side lot lines**.

(655) Rear Yard Setback

means a horizontal distance on a **lot** measured at a right angle from the **rear lot line** to the nearest **main wall** of a **building** or **structure**.

(660) Recovery Facility

means **premises** used for separating or sorting **recyclable material**. A **salvage yard** is not a **recovery facility**.

(665) Recreation Use

means **premises** used for sports, physical play or exercise, such as a fitness club, bowling alley, billiards hall or pool hall, swimming pool or skating rink. An **amusement arcade** and a **sports place of assembly** is not a **recreation use**.

(670) Recyclable Material

means material that is separated into specific categories for purposes of reuse, recycling or composting.

(675) Religious Education Use

means the use of **premises** by a **religious organization** for religious education, other than:

- (A) a **post-secondary school**; or
- (B) a school regulated under the Education Act, R.S.O. 1990, c.E.2, as amended.

(680) Religious Organization

means a corporation or an association of persons that is charitable according to the law of Ontario, organized for the advancement of religion through the conduct of religious worship, services, ceremonies or rites, including its charitable purposes.

(685) Religious Residence

means **premises** owned or operated by, or on behalf of, a **religious organization**, consisting of **dwelling units** or rooms, used as accommodation for students or clerics, such as a monastery, nunnery or similar residence.

(690) Renewable Energy

means energy obtained from **solar energy**, **wind energy**, or **geo-energy**.

(695) Residential Building

includes the following types of **buildings**:

- (A) **apartment building**;
- (B) **detached house**;
- (C) **duplex**;
- (D) **fourplex**;
- (E) **semi-detached house**;
- (F) **townhouse**; or
- (G) **triplex**.

(700) Residential Care Home

means supervised living accommodation that may include associated support services, and:

- (A) is licensed or funded under Province of Ontario or Government of Canada legislation;
- (B) is for persons requiring semi-independent or supervised group living arrangements; and

(C) is for more than ten persons, exclusive of staff.

(D) an **apartment building** used for the purpose of supportive housing or social housing is not a **residential care home**.

(705) Resin, Natural or Synthetic Rubber Manufacturing

means **premises** used for primary processing of synthetic resins, plastics materials and synthetic rubber from basic organic chemicals.

(710) Respite Care Facility

means **premises** used for the provision of short-term non-emergency services for the supervised care of people of any age, in order to provide relief to their caregivers. A **respite care facility** may include the provision of services, such as:

(A) preventive medicine,

(B) counselling,

(C) social, recreational or educational programs, or

(D) day or overnight care.

(E) A **day nursery** is not a **respite care facility**. [ By-law: 451-2022 ]

(715) Retail Service

means **premises** in which photocopying, printing, postal, or courier services are sold or provided.

(720) Retail Store

means **premises** in which goods or commodities are sold, rented or leased.

(725) Retirement Home

means **premises** used for semi-independent living accommodation for senior citizens primarily in **bed-sitting rooms**, with common dining and lounge areas. A **seniors community house** is not a **retirement home**.

(730) Salvage Yard

means **premises** used as a scrap metal yard or a **vehicle** wrecking yard, and which may include storing, dismantling, crushing, or demolishing **vehicles** or heavy equipment or parts thereof.

(735) Secondary Suite

means self-contained living accommodation for an additional person or persons living together as a separate single housekeeping unit, in which both food preparation and sanitary facilities are provided for the exclusive use of the occupants of the suite, located in and subordinate to a **dwelling unit**.

(740) Self-Storage Warehouse

means **premises** where individual enclosed areas are made available to the public for keeping or storing goods or commodities.

(745) Semi-Detached House

means a **building** that has two **dwelling units**, and no **dwelling unit** is entirely or partially above another.

(750) Seniors Community House

means **premises** operated by a **non-profit organization** providing living accommodation for up to ten senior citizens in **bed-sitting rooms**, if there is:

(A) a maximum of two persons for each **bed-sitting room**,

(B) accommodation for one staff person,

(C) a common lounge and dining area, and

(D) one or two kitchens shared by all residents.

(755) Service Shop

means **premises** used for servicing, repairing or refurbishing goods, other than **vehicles**. A **personal service shop** is not a **service shop**.

(760) Shipping Terminal

means **premises** used for transferring goods or commodities between **vehicles** or other transportation modes, and which may include facilities for maintenance, service and fuelling areas that are **ancillary** to the **shipping terminal**. A **waste transfer station** is not a **shipping terminal**.

(763) Short-term Rental

means all or part of a **dwelling unit**, that:

(A) is used to provide sleeping accommodations for any rental period that is less than 28 consecutive days; and

(B) is the principal residence of the short-term rental operator. [ By-law: 1453-2017 ] [ By-law: 1453-2017; 1092-2021 ]

(765) Side Lot Line

means any **lot line** other than a **front lot line** or a **rear lot line**.

(770) Side Yard

means the area on a **lot** that extends between the **front yard** and the **rear yard** of the **lot**, between the **side lot lines** and the **building's side main walls** respectively facing the **side lot lines**.

(775) Side Yard Setback

means a horizontal distance on a **lot** measured at a right angle from the **side lot lines** to the nearest **main wall** of a **building** or **structure**.

(780) Soft Landscaping

means **landscaping** excluding hard-surfaced areas such as decorative stonework, retaining walls, walkways, or other hard-surfaced landscape-architectural elements.

(785) Software Development and Processing

means **premises** used for software development and testing, or for the collection, analysis, processing, storage or distribution of electronic data.

(790) Solar Energy

means energy from the sun that is converted to produce electrical or thermal energy.

(795) Sports Place of Assembly

means **premises** used for spectator sporting events, such as a stadium or arena.

(800) Stable

means **premises** used for keeping, boarding, training or breeding horses, mules or other equine animals.

(805) Stacked Bicycle Parking Space

means a horizontal **bicycle parking space** that is positioned above or below another **bicycle parking space** and equipped with a mechanical device providing floor level access to both **bicycle parking spaces**.

(810) Stacked Parking Space

means a **parking space** that is positioned above or below another **parking space** and is accessed only by means of an elevating device.

(815) Stacking Aisle

means an on site queuing area for motor **vehicles** that is separated from other **vehicle** traffic and pedestrian circulation by barriers, markings or signs.

[ By-law: 607-2015 ]

(820) Storey

means a level of a **building**, other than a **basement**, located between any floor and the floor, ceiling or roof immediately above it.

(825) Street

means a public right-of-way for general traffic circulation.

(830) Street Yard

means any **front yard**, **rear yard** or **side yard** abutting a **street**.

(835) Structure

means anything that is erected, built or constructed of one or more parts joined together. A **vehicle** is not a **structure**.

(840) Student Residence

means **premises** owned and operated by a **public school, private school, post-secondary school** or educational facility, consisting of **dwelling units, bed-sitting rooms** or rooms, used for student accommodation.

(845) Take-out Eating Establishment

means **premises** where food or beverages are prepared and offered for sale to patrons for consumption off the **premises**.

(850) Tandem Parking Space

means a **parking space** that is only accessed by passing through another **parking space** from a **street, lane, drive aisle** or **driveway**.

(855) Through Lot

means a **lot**, other than a **corner lot**, that abuts:

- (A) more than one **street**; or
- (B) one **street** in more than one location.

(860) Tourist Home

means a use that:

- (A) is in a **dwelling unit** which is the principal residence of the **tourist home** operator;
- (B) caters to the needs of the travelling public by the furnishing of sleeping accommodation; and
- (C) may include the provision of meals.

(865) Townhouse

means a **building** that has three or more **dwelling units**, and no **dwelling unit** is entirely or partially above another. A **detached house** or **semi-detached house** that has one or more **secondary suites** is not a **townhouse**.

(870) Transportation Use

means the use of **premises** or facilities for the operation of a mass transit system or a transportation system that is provided by, or on behalf of, the City of Toronto, Province of Ontario or Government of Canada, or is privately operated and Federally regulated.

(875) Triplex

means a **building** that has three **dwelling units**, with at least one **dwelling unit** entirely or partially above another. A **detached house** or **semi-detached house** that has one or more **secondary suites** is not a **triplex**.

(880) Vehicle

means a wheeled or tracked device, either self-propelled or capable of being pulled by a self-propelled device, for moving persons or objects, or used for construction or agriculture.

(885) Vehicle Dealership

means **premises** used for the sale, rental or lease of **vehicles** displayed or stored on site, excluding construction or agricultural **vehicles**.

(890) Vehicle Depot

means **premises** used for the non-public storing of **vehicles**, excluding construction or agricultural **vehicles**. A **vehicle depot** may include dispatching, maintenance, service and fuelling areas for the stored **vehicles** that are **ancillary** to the **vehicle depot**.

(895) Vehicle Fuel Station

means **premises** where **vehicle** fuels are sold to the public.

(900) Vehicle Repair Shop

means **premises** used for **vehicle** service, repair or customizing, such as spray painting, repairing body or fender components.

(910) Vehicle Service Shop

means **premises** used for **vehicle** service or customizing, such as mechanical, electrical, glass or upholstery service or installation of parts or accessories, but excluding:

- (A) spray painting or repairing body or fender components; and

(B) the service or customizing of construction or agriculture **vehicles**.

(915) Vehicle Washing Establishment

means **premises** used for washing or cleaning **vehicles**.

(920) Veterinary Hospital

means **premises** used by a licensed veterinarian for the medical treatment of animals.

(925) Warehouse

means **premises** used for keeping or storing goods or commodities, to which the general public does not have access, and which may also be used for the distribution of the goods or commodities.

(930) Waste Incinerator

means **premises** where waste material is reduced or destroyed by combustion through the application of heat.

(935) Waste Transfer Station

means **premises** used for receiving waste or **recyclable material** and transferring the material to **vehicles** for transport to another location.

(937) Wellness Centre

means **premises** providing services for therapeutic and wellness purposes. A **massage therapy**, medical office or **body rub service** is not a **wellness centre**.

[ By-law: 0559-2014 (OMB PL130592) ]

(940) Wholesaling Use

means the use of **premises** for the sale of goods or commodities only to retailers or other businesses.

(945) Wind Energy

means energy from the wind that is converted to produce electrical energy.

(955) Zoo

means **premises** used for the care and exhibiting of animals and other living things for public viewing, and which may include breeding or research.